

The Castor Seeds (Grading and Marking) Rules, 2011

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Union of India - Act

The Castor Seeds (Grading and Marking) Rules, 2011

UNION OF INDIA

India

The Castor Seeds (Grading and Marking) Rules, 2011

Rule THE-CASTOR-SEEDS-GRADING-AND-MARKING-RULES-2011 of 2011

Published on 25 July 2011

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The Castor Seeds (Grading and Marking) Rules, 2011

Published vide Notification New Delhi, the 25th July, 2011

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 564(E). - Whereas the draft of Castor Seeds Grading and Marking Rules, 2011, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide notification number G.S.R.193(E), dated the 8th March,2011, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which copies of the said notification published in the Gazette of India were made available to the public;

And whereas copies of the said notification were made available to the public on the 16th March, 2011;

And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly

considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely:-

Rules

1.

Short title, application and commencement. - (1) These rules may be called the Castor Seeds (Grading and Marking) Rules, 2011.

(2)

They shall apply to Castor seeds obtained from the plant *Ricinus Communis* Linn of the family Euphorbiaceae.

(3)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions. - (a) "Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India.

(b)

"authorised packer" means a person to whom or a body of persons to which a certificate of authorisation has been granted to grade and mark Castor seeds in accordance with the grade standards and procedure provided under these rules;

(c)

"certificate of authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Castor seeds with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"Grade designation mark" means the "Agmark Insignia" referred to in rule 5;

(f)

"Schedule" means a Schedule appended to these rules;

3.

Grade designations. - The grade designations to indicate the quality of castor seeds shall be as specified in column (I) of Schedule II.

4.

Quality. - For the purposes of these rules, the quality of Castor seeds shall be as specified in Schedule II.

5.

Grade designation mark. - The grade designation mark shall consist of "AGMARK insignia" consisting of a design incorporating the certificate of authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as specified in Schedule-I.

6.

Method of packing. - (1) Castor seeds shall be packed in gunny bag or jute bag, polywoven bag, poly pouch, cloth bag; High Density Poly Ethylene laminated paper bag, new or un-mended B-Twill bag or any other packing material as approved by the Agricultural Marketing Adviser.

(2)

The packing material shall be clean, sound, free from insect or fungal infestation and should not impart any toxic substance or undesirable odour.

(3)

Castor seeds shall be packed in pack sizes as per the Legal Metrology (Packaged Commodities) Rules, 2011 or the instructions issued by the Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade shall be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain castor seeds of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed and the mouth of the bag should be stitched as to disallow sweating or spilling.

7.

Method of Marking. - (1) The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, 1988.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely :-

(a)

Name and address of the packer;

(b)

Place of packing;

(c)

Date of packing;

(d)

Variety or trade name; (optional)

(e)

Crop year; (optional)

(f)

Grade;

(g)

Net weight;

(h)

Maximum retail Price (inclusive of all taxes);

(i)

Best Before _____ Month _____ Year;

(j)

Any other particulars as may be specified by the Agricultural Marketing Adviser from time to time.

(3)

The ink used for marking on package shall be of such quality which shall not contaminate the castor seeds.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Special conditions of certificate of authorisation. - In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, 1988, every authorised packer shall comply with the following conditions including all instructions issued by the Agricultural Marketing Adviser from time to time, namely:-

(i)

The authorized packer shall either set up his own laboratory in accordance with the provisions of these rules or have access to an approved State Grading Laboratory or Cooperative or Association laboratory or a Private Commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 for testing the quality of castor seeds.

(ii)

The premises shall be maintained in perfect hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(iii)

The premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation.

(iv)

The authorised packer and the approved chemist shall comply with all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or any other officer authorized by him in this behalf from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of the Commodity

Grade

II

(See rules 3 and 4)

Grade Designation And Quality of Castor Seeds [*Ricinus communis* L.]

1. Castor seeds shall be obtained from *Ricinus communis* Linn of family Euphorbiaceae.

2. Minimum requirements: - (i) Castor seeds shall be.-

(a)

mature, clean and dried seeds;

(b)

wholesome;

(c)

uniform in size, shape and colour;

(d)

free from living and dead insects, insect fragments;

(e)

free from fungus, moulds and mites;.

(f)

free from added colouring matter or artificial colouring matter;

(g)

free from rodent hair and, excreta;

(h)

free from admixture of any other seed;.

(i)

free from rancidity and mustiness and the seed shall not emit foul odour or found deformed due to moist condition.

(ii)

In case of grading on boldness of seeds, it shall be as per 100 seeds weight and with proper marking on the package.

(a)

"Bold castor" : if seed weight is more than 25g for 100 seeds

(b)

"Small castor" : if seed weight is 25g or less for 100 seeds.

3. Criteria for grade designation.

Table

Grade

designation

Extraneous

matter

Damage,

discolored seeds, percent by mass (max.)

Immature

and Shriveled, percent by mass (max.)

Broken

seed, percent by mass (max.)

Moisture

content, percent by mass (max.)

Oil

content, percent by mass (Min.)

Acid Value

of the extracted oil, percent by mass (max.)

Organic

percent by mass (max.)

Inorganic,

percent by mass (max.)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Special

0.5

Nil

3.0

1.0

0.5

5.0

48.0

3.0

Standard

1.0

0.5

5.0

3.0

1.5

6.0

45.0

5.0

General

2.5

1.5

7.0

6.0

3.0

7.0

40.0

8.0

Explanation. - For the purposes of these rules,-

(a)

extraneous matter, means-

(i)

organic matter Chaff, stems, straw or any other organic matter other than the castor seed.

(ii)

inorganic matter, metallic pieces, sand, gravel, dirt, pebbles, stones, lumps of earth, clay and mud.

(b)

immature and shriveled seeds mean the seeds, which are not developed fully and shrunken.

(c)

broken seed shall mean those which are broken or not complete.

(d)

other seed shall mean the oil seeds other than castor seed .

4. Other requirements. - (i) The condition of the castor seeds shall be as to enable it;-

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination;

(ii)

The castor seeds shall be stored in cool and dry place maintained in a clean and hygienic condition.

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